

26NNCV00100 26NNCV00100

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26NNCV00100 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Authorize Electronic Service

Hearing Date: 7/31/26

CASE NO./NAME: 26NNCV00100 / VW Credit

Inc. v. GG Motorsport, Inc., et al.

Moving Party: Plaintiff VW Credit Inc.

dba VW Credit Leasing Ltd

Responding Party: Unopposed

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal property dispute action.

On January 7, 2026, Plaintiff VW Credit Inc. dba VW Credit Leasing Ltd (Plaintiff) filed a Complaint against defendants GG Motorsport, Inc. (Motorsport); California Department of Motor Vehicles; and DOES 1-10 inclusive asserting causes of action for (1) claim and delivery of personal property; (2) conversion; (3) quiet title; and (4) declaratory relief. On May 26, 2026, Plaintiff filed the instant motion seeking an order authorizing service of summons to Motorsport via electronic mail.

No opposition has been filed as of July 23, 2026.

LEGAL

STANDARD

"If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30, subd. (a)(1).) This requires a plaintiff to "set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute." (Code Civ. Proc., § 413.30, subd. (a)(2).)

DISCUSSION

Plaintiff argues

that they have exercised reasonable diligence to attempt service through authorized methods but have not been able to personally serve Motorsport at its principal place of business or the residential address of its owner. (Mot., p.

2.) For this reason, Plaintiff moves the court to authorize service via electronic mail. (Ibid.)

First, Plaintiff

attempted to serve Motorsport at its business address, but the premises was vacant. (Mot., p. 3.) Per an onsite manager, Plaintiff argues that Motorsport moved off the premises three years ago. (Krugliak Decl., Exh. D; Mot., p. 3.) Subsequently, Plaintiff attempted to serve Motorsport's sole owner and agent at their residential address but was unsuccessful. (Krugliak Decl., Exh. E; Mot., p. 3.) Plaintiff seeks to serve Motorsport using a business email found on an invoice issued by Motorsport prior to the commencement of this action. (Mot., p. 4.) Plaintiff's counsel declares that they have communicated with Motorsport's sole owner via email before and received an immediate response. (Krugliak Decl., ¶ 9.) Thus, Plaintiff's counsel declares that this is the most likely method for providing notice of the summons, complaint, and other related documents. (Ibid.)

Here, efforts to

personally serve Motorsport have not been exhausted. (Krugliak Decl., Exh. E.) Although Motorsport's principal place of business may be outdated, Plaintiff has obtained the residential address of its owner or agent and can attempt service at that location. Moreover, section 413.30 states that the Court can authorize alternative methods of service if a party "has been unable to effect service of the summons by any of the methods authorized under this chapter". (Code Civ. Proc., § 413.30, subd. (a)(1).) Plaintiff has not attempted service by mail, which is authorized under this chapter of the Code of Civil Procedure, and Plaintiff has attempted service at the residence of Motorsport's sole owner only once.

Further, under section 413.30 the court is authorized "to direct that summons be served in a manner that is reasonably calculated to give actual notice", this doesn't necessarily mean electronic service. (Code Civ. Proc., § 413.30(a)(1).) Upon a showing of reasonable diligence, "the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy" when an agent cannot be served. (Corp. Code, § 1702 (a).)

However, as stated, Plaintiff has not exhausted efforts to personally serve Motorsport's sole owner. Accordingly, the motion is DENIED.

CONCLUSION

AND ORDER

Plaintiff VW Credit Inc.'s Motion to
Authorize Electronic Service is DENIED.

MOVING PARTY is to give notice.